

communicate and has also failed to pay.

Disposition

The court grants Counsel's request to be relieved.

Counsel for Defendant shall file the Order.

7. 9:00 AM CASE NUMBER: L25-03269

CASE NAME: CAPITAL ONE N.A. VS. DOUGLAS LINARES

***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff filed, on December, 4, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff attached a proof of service.

Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

The court makes the following findings:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Attachment One to Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to prepare the Order.

8. 9:00 AM CASE NUMBER: L25-03299
CASE NAME: JPMORGAN CHASE BANK N.A. VS. STEVEN MERCER
***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Plaintiff has filed a Motion to Set Aside Dismissal and Enter Judgment under terms of Stipulated Agreement (Motion). Plaintiff has also requested for the court to take Judicial Notice of an agreement between Plaintiff and Defendant.

The Motion is unopposed.

Analysis

In this matter, the court issued an order, on September 3, 2025, dismissing the action in an agreement between the parties under Section 664.6 of the Code of Civil Procedure, as well as retaining jurisdiction under that same agreement. Though the action was dismissed, the agreement - attached as Exhibit A to Plaintiff's request for Judicial Notice, and also filed on September 3, 2025 - called for the court to retain jurisdiction until December 2, 2027, and issue judgment in favor of the Plaintiff in the amount of \$9,711.26, should the Defendant default on payment.

The Plaintiff, by declaration included in their Motion, represented that Defendant made no payments toward the balance.

Disposition

Plaintiff's Motion is Granted.

Plaintiff to prepare the Order.

9. 9:00 AM CASE NUMBER: L25-04747
CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS
***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED**
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

In both matters, Plaintiff filed, on December, 4, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). In both matters, Plaintiff attached a proof of service for this Motion, as well for Request for Admission.

The motions are identical and only differ in docket number.

In both matters, Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.